

CV-25-007409 ARELLANO, REBECCA vs MEDRANO, GADY - Defendant's Special Motion to Strike Complaint (Code Civ. Proc. § 425.16) - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Plaintiff's Request for Judicial Notice is GRANTED as to the existence and contents of the court records filed in the related action, but not as to the truth of disputed factual allegations contained therein. Anti-SLAPP Analysis Code of Civil Procedure section 425.16 requires the Court to engage in a two-step analysis. First, the defendant must establish that the challenged claims arise from activity protected by the statute. If that burden is met, the burden shifts to the plaintiff to establish a probability of prevailing on the merits by demonstrating that the claims are legally sufficient and supported by a prima facie showing of facts which, if credited, would sustain a favorable judgment. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.) Prong One: Protected Activity Defendant has satisfied her burden under the first prong. The gravamen of each cause of action is Defendant's May 23, 2025 report to law enforcement concerning Plaintiff's entry into the business premises. The Complaint alleges no independently actionable conduct apart from Defendant's communication to police and the resulting law-enforcement response. Communications to law enforcement intended to prompt an official investigation or response constitute protected petitioning activity under Code of Civil Procedure section 425.16, subdivision (e)(1) and (e)(2). (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115-1116; *Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941-942; *Walker v. Kiouisis* (2001) 93 Cal.App.4th 1432, 1439.) Plaintiff contends the communication falls outside the anti-SLAPP statute pursuant to *Flatley v. Mauro* (2006) 39 Cal.4th 299. However, the Flatley exception applies only where the defendant concedes the illegality of the conduct or the evidence conclusively establishes illegality as a matter of law. (*Flatley*, supra, 39 Cal.4th at pp. 316-320; *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 424.) Where the alleged illegality depends upon disputed facts, the conduct remains protected for purposes of the first prong. (*Kenne v. Stennis* (2014) 230 Cal.App.4th 953, 967; *Dwight R. v. Christy B.* (2013) 212 Cal.App.4th 697, 712; *Siam v. Kizilbash* (2005) 130 Cal.App.4th 1563, 1569-1570.) Here, Defendant does not concede that her report was false, and the evidence does not conclusively establish falsity or illegality as a matter of law. At most, the evidence demonstrates a disputed characterization of the parties' business and ownership dispute and the events occurring on May 23, 2025. Accordingly, Defendant has satisfied the first prong of the anti-SLAPP analysis. Prong Two: Probability of Prevailing Plaintiff has failed to carry her burden under the second prong. At this stage, the Court does not weigh credibility, resolve evidentiary conflicts, or determine the ultimate truth of the parties' competing factual contentions. Rather, the Court accepts Plaintiff's evidence as true and considers Defendant's evidence only to determine whether it defeats Plaintiff's showing as a matter of law. (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 940-941, 948-949.) Nevertheless, even applying that plaintiff-favorable standard, Plaintiff has not presented evidence sufficient to establish a prima facie showing that Defendant made a knowingly false report to law enforcement or acted with reckless disregard for the truth. The parties correctly recognize that this case is governed not only by *Hagberg v. California Federal Bank FSB* (2004) 32 Cal.4th 350, but also by the Legislature's subsequent enactment of Civil Code section 47(b)(5), which removes the litigation privilege for communications making a false report to law enforcement when made with knowledge of falsity or reckless disregard for the truth. To avoid the privilege, Plaintiff was therefore required to make a prima facie showing that: (1) Defendant's report was false; and (2) Defendant knew it was false or acted with reckless disregard for its truth or falsity. (Civ. Code, § 47, subd. (b)(5).) Plaintiff has not made that showing. Plaintiff expressly acknowledges she has not personally listened to the 911 recording and therefore has no personal knowledge regarding Defendant's actual statements to dispatch. Further, the evidence submitted by Plaintiff primarily concerns her claimed ownership interests, governance rights, and access to the premises. While that evidence may support Plaintiff's position regarding the underlying business dispute, it does not constitute prima facie evidence that Defendant knowingly made a false report to law enforcement. Conversely, the evidence before the Court reflects that Plaintiff entered premises after her access had allegedly been revoked and the locks changed, and that she was accompanied by a locksmith. The responding officer's subsequent conclusion that the dispute was civil in nature, and his notation that Plaintiff possessed ownership interests in the businesses, do not establish that Defendant knowingly or recklessly made a false report at the time the call was made. At most, the evidence supports competing interpretations of the underlying events. Such a showing is insufficient to bring the communication within the exception set forth in Civil Code section 47(b)(5). Because Plaintiff has not made a prima facie showing sufficient to overcome the litigation privilege, the privilege bars all three causes of action, each of which is premised entirely upon Defendant's communication to law enforcement. (*Hagberg v. California Federal Bank FSB* (2004) 32 Cal.4th 350, 360-372.) The abuse of process claim independently fails because Plaintiff has not identified any judicial process that Defendant procured or misused. A report to law enforcement, detention, or police investigation does not constitute "process" for purposes of the tort. (*Adams v. Superior Court* (1992) 2 Cal.App.4th 521, 530-531; *S.A. v. Maiden* (2014) 229 Cal.App.4th 27, 41.) Discovery Request Plaintiff's

request for discovery pursuant to Code of Civil Procedure section 425.16, subdivision (g), is DENIED. Plaintiff did not file the noticed motion and supporting showing of good cause contemplated by the statute. Moreover, the record reflects that Plaintiff's counsel already possesses the 911 recording that Plaintiff contends is necessary to oppose the motion. Disposition Defendant's Special Motion to Strike is GRANTED IN ITS ENTIRETY. The Complaint is ordered stricken. Defendant is the prevailing party within the meaning of Code of Civil Procedure section 425.16, subdivision (c)(1), and is entitled to recover reasonable attorney fees and costs. The amount of any fee award shall be determined upon a timely noticed motion. Defendant shall prepare an order consistent with this ruling.

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Plaintiff's Request for Judicial Notice is GRANTED as to the existence and contents of the court records filed in the related action, but not as to the truth of disputed factual allegations contained therein.

Anti-SLAPP Analysis

Code of Civil Procedure section 425.16 requires the Court to engage in a two-step analysis. First, the defendant must establish that the challenged claims arise from activity protected by the statute. If that burden is met, the burden shifts to the plaintiff to establish a probability of prevailing on the merits by demonstrating that the claims are legally sufficient and supported by a prima facie showing of facts which, if credited, would sustain a favorable judgment. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Prong One: Protected Activity

Defendant has satisfied her burden under the first prong.

The gravamen of each cause of action is Defendant's May 23, 2025 report to law enforcement concerning Plaintiff's entry into the business premises. The Complaint alleges no independently actionable conduct apart from Defendant's communication to police and the resulting law-enforcement response. Communications to law enforcement intended to prompt an official investigation or response constitute protected petitioning activity under Code of Civil Procedure section 425.16, subdivision (e)(1) and (e)(2). (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115-1116; *Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941-942; *Walker v. Kiouisis* (2001) 93 Cal.App.4th 1432, 1439.)

Plaintiff contends the communication falls outside the anti-SLAPP statute pursuant to *Flatley v. Mauro* (2006) 39 Cal.4th 299. However, the Flatley exception applies only where the defendant concedes the illegality of the conduct or the evidence conclusively establishes illegality as a matter of law. (*Flatley*, supra, 39 Cal.4th at pp. 316-320; *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 424.) Where the alleged illegality depends upon disputed facts, the conduct remains protected for purposes of the first prong. (*Kenne v. Stennis* (2014) 230 Cal.App.4th 953, 967; *Dwight R. v. Christy B.* (2013) 212 Cal.App.4th 697, 712; *Siam v. Kizilbash* (2005) 130 Cal.App.4th 1563, 1569-1570.)

Here, Defendant does not concede that her report was false, and the evidence does not conclusively establish falsity or illegality as a matter of law. At most, the evidence demonstrates a disputed characterization of the parties' business and ownership dispute and the events occurring on May 23, 2025. Accordingly, Defendant has satisfied the first prong of the anti-SLAPP analysis.

Prong Two: Probability of Prevailing

Plaintiff has failed to carry her burden under the second prong.

At this stage, the Court does not weigh credibility, resolve evidentiary conflicts, or determine the ultimate truth of the parties' competing factual contentions. Rather, the Court accepts Plaintiff's evidence as true and considers Defendant's evidence only to determine whether it defeats Plaintiff's showing as a matter of law. (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 940-941, 948-949.) Nevertheless, even applying that plaintiff-favorable standard, Plaintiff has not presented evidence sufficient to establish a prima facie showing that Defendant made a knowingly false report to law enforcement or acted with reckless disregard for the truth.

The parties correctly recognize that this case is governed not only by *Hagberg v. California Federal Bank FSB* (2004) 32 Cal.4th 350, but also by the Legislature's subsequent enactment of Civil Code section 47(b)(5), which removes the litigation privilege for communications making a false report to law enforcement when made with knowledge of falsity or reckless disregard for the truth.

To avoid the privilege, Plaintiff was therefore required to make a prima facie showing that: (1) Defendant's report was false; and (2) Defendant knew it was false or acted with reckless disregard for its truth or falsity. (Civ. Code, § 47, subd. (b)(5).)

Plaintiff has not made that showing. Plaintiff expressly acknowledges she has not personally listened to the 911 recording and therefore has no personal knowledge regarding Defendant's actual statements to dispatch. Further, the evidence submitted by Plaintiff primarily concerns her claimed ownership interests, governance rights, and access to the premises. While that evidence may support Plaintiff's position regarding the underlying business dispute, it does not constitute prima facie evidence that Defendant knowingly made a false report to law enforcement.

Conversely, the evidence before the Court reflects that Plaintiff entered premises after her access had allegedly been revoked and the locks changed, and that she was accompanied by a locksmith. The responding officer's subsequent conclusion that the dispute was civil in nature, and his notation that Plaintiff possessed ownership interests in the businesses, do not establish that Defendant knowingly or recklessly made a false report at the time the call was made. At most, the evidence supports competing interpretations of the underlying events. Such a showing is insufficient to bring the communication within the exception set forth in Civil Code section 47(b)(5).

Because Plaintiff has not made a prima facie showing sufficient to overcome the litigation privilege, the privilege bars all three causes of action, each of which is premised entirely upon Defendant's communication to law enforcement. (*Hagberg v. California Federal Bank FSB* (2004) 32 Cal.4th 350, 360-372.)

The abuse of process claim independently fails because Plaintiff has not identified any judicial process that Defendant procured or misused. A report to law enforcement, detention, or police investigation does not constitute "process" for purposes of the tort. (*Adams v. Superior Court* (1992) 2 Cal.App.4th 521, 530-531; *S.A. v. Maiden* (2014) 229 Cal.App.4th 27, 41.)

Discovery Request

Plaintiff's request for discovery pursuant to Code of Civil Procedure section 425.16, subdivision (g), is DENIED. Plaintiff did not file the noticed motion and supporting showing of good cause contemplated by the statute. Moreover, the record reflects that Plaintiff's counsel already possesses the 911 recording that Plaintiff contends is necessary to oppose the motion.

Disposition

Defendant's Special Motion to Strike is GRANTED IN ITS ENTIRETY. The Complaint is ordered stricken.

Defendant is the prevailing party within the meaning of Code of Civil Procedure section 425.16, subdivision (c)(1), and is entitled to recover reasonable attorney fees and costs. The amount of any fee award shall be determined upon a timely noticed motion.

Defendant shall prepare an order consistent with this ruling.